

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aliza Klingenstein	Team: Squad #16	CCRB Case #: 202107121	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 10/10/2021 4:52 PM	Location of Incident: Inside Starbucks at 83 W 125th Street	18 Mo. SOL 4/10/2023	Precinct: 28		
Date/Time CV Reported Fri, 11/12/2021 10:39 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/23/2021 11:39 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Creel Brown	14622	955770	028 PCT
2. PO Leonel Martinezpaula	19844	967991	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Syed Huda	01500	947088	028 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Leonel Martinezpaula	Abuse: Police Officer Leonel Martinezpaula forcibly removed § 87(2)(b) to the hospital.	A . Exonerated
B . PO Creel Brown	Abuse: Police Officer Creel Brown searched § 87(2)(b)	B . Substantiated
C . PO Creel Brown	Discourtesy: Police Officer Creel Brown spoke discourteously to § 87(2)(b)	C . Substantiated
D . PO Creel Brown	Off. Language: Police Officer Creel Brown made offensive remarks to § 87(2)(b) based upon perceived mental status.	D . Substantiated
E . PO Creel Brown	Abuse: Police Officer Creel Brown threatened to arrest § 87(2)(b)	E . Exonerated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On November 12, 2021, § 87(2)(b) filed this complaint over the phone with IAB. It was received at the CCRB on November 23, 2021.

On October 10, 2021, at approximately 4:52 p.m., at the Starbucks located at 83 West 125th Street in Manhattan, Police Officers Creel Brown and Leonel Martinezpaula, both of the 28th Precinct, responded to a 911 call for harassment. PO Martinezpaula determined § 87(2)(b) was an Emotionally Disturbed Person (EDP) and requested an ambulance (**Allegation A: Abuse of Authority, exonerated**). While waiting for EMS, PO Brown searched § 87(2)(b) (**Allegation B: Abuse of Authority, substantiated**), told § 87(2)(b) he had gone “apeshit” in the Starbucks (**Allegation C: Discourtesy, substantiated**) (**Allegation D: Off. Language, substantiated**), and threatened to arrest § 87(2)(b) if he returned to the store (**Allegation E: Abuse of Authority, exonerated**). An ambulance arrived and removed § 87(2)(b) to § 87(2)(b) Hospital.

§ 87(2)(g), § 87(4-b)

Two Body-Worn Camera (BWC) videos were used to analyze the allegations (**Board Review 01&02**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Leonel Martinezpaula forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Police Officer Creel Brown searched § 87(2)(b)

Allegation (C) Discourtesy: Police Officer Creel Brown spoke discourteously to § 87(2)(b)

Allegation (D) Offensive Language: Police Officer Creel Brown made offensive remarks to § 87(2)(b) based upon perceived mental status.

Allegation (E) Abuse of Authority: Police Officer Creel Brown threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that he was inside Starbucks at 83 West 125th Street when a female employee and other individuals yelled that he needed to leave (**Board Review 03**). § 87(2)(b) felt disrespected, so he spoke disrespectfully to the people in the store, but he did not threaten anyone. The female employee threw hot water at § 87(2)(b) face. PO Brown and PO Martinezpaula arrived and handcuffed § 87(2)(b). The officers then removed § 87(2)(b) to the hospital, which he originally believed was for the purpose of treating his injuries from the hot water, but he received a psychological evaluation there instead.

Details of Event § 87(2)(b) for this incident include at 4:46 p.m., “Female caller states male Black cursing at customers and trying to hit her,” and at 4:47 p.m., “Female caller states male Black still in the store” (**Board Review 04**). At 4:53 p.m., the first unit arrived on scene. At 4:57 p.m., an ambulance event was created, and the comment added, “EDP at location.”

In PO Brown’s BWC at minute mark 1:02, the officers arrive outside Starbucks and § 87(2)(b) states someone threw hot water on him (**Board Review 01**). At 1:15, § 87(2)(b) states he is “the Lord” and wants to press charges. At 1:50, the officers enter Starbucks, and at 1:58, two female employees state § 87(2)(b) attempted to go behind the counter and hit one of them. At 2:03, one employee states § 87(2)(b) threw an object at the other employee, so the employees tried to

kick him out. At 2:16, one employee states § 87(2)(b) tossed an object at her face (while pointing to a metal basket holding cardboard coffee sleeves), and she states she threw hot water at him in response. At 2:22, an employee states this was the third time § 87(2)(b) visited this Starbucks (no time range provided). In PO Martinezpaula's BWC at minute mark 3:16, PO Martinezpaula states, "EDP" as the officers exit the Starbucks (**Board Review 02**).

In PO Brown's BWC at 5:00, PO Brown and PO Martinezpaula handcuff § 87(2)(b) on the sidewalk. In PO Martinezpaula's BWC at 5:24, PO Martinezpaula lifts his radio (no audio captured), and a voice over the radio states, "One EDP coming over." In PO Brown's BWC at 5:50, PO Brown uses his left hand to tap the right rear pocket of § 87(2)(b) jeans and asks if § 87(2)(b) has identification on him. § 87(2)(b) states he does, and 5:55, PO Brown tells § 87(2)(b) he will reach into his wallet to retrieve it. § 87(2)(b) does not show any response to PO Brown's statement, and at 6:06, PO Brown removes § 87(2)(b) ID and returns the wallet to his pocket. At 10:20, § 87(2)(b) asks why the officers handcuffed him, and PO Brown responds, "Because you were the one who went ape shit in Starbucks!" At 15:24, PO Brown tells § 87(2)(b) he is not allowed to enter this Starbucks location again, and at 15:30, PO Brown continues, "You go in, they call, we arrest you." At 20:42, PO Brown hands § 87(2)(b) ID to EMT § 87(2)(b) and § 87(2)(b) enters the ambulance.

PO Martinezpaula testified that he determined § 87(2)(b) was an EDP after hearing the employees state § 87(2)(b) had thrown items around the store and lunged at one of them, in addition to § 87(2)(b) statement that he was "the Lord" when the officers first arrived (**Board Review 05**). PO Martinezpaula told PO Brown he believed § 87(2)(b) was an EDP, and he requested an ambulance and updated the radio code accordingly.

PO Brown testified that while waiting for the ambulance, he removed § 87(2)(b) ID from his wallet to obtain his name and date of birth because he believed the EMTs would later need this information to process him (**Board Review 06**). PO Brown testified that § 87(2)(b) could have verbally provided this information, but PO Brown preferred to obtain it from official ID, as civilians could lie. PO Brown did not recall if he asked § 87(2)(b) if he could remove his ID prior to doing so. PO Brown testified that there was no Patrol Guide procedure to remove a civilian's ID while waiting for EMS, and he stated he had "not studied the Patrol Guide in a quite a while."

PO Brown testified that he told § 87(2)(b) he went "apeshit" in the Starbucks because it was the answer to § 87(2)(b) question about why the officers had handcuffed him. PO Brown understood the word "apeshit" to be a derogatory term for the word "crazy," and he testified that when he first encountered § 87(2)(b) outside the Starbucks, § 87(2)(b) was "acting crazy."

PO Brown testified that § 87(2)(b) would have been arrested for trespass if he returned to the Starbucks because the employees did not want him there. PO Brown testified that he assumed this from his conversation with the employees, although he did not recall if any employee stated this.

NYPD Patrol Guide Procedure 221-13 defines an EDP as, "A person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others" (**Board Review 07**). Officers are instructed to restrain the EDP and remove him to the hospital.

§ 87(2)(g) BWC captures § 87(2)(b) statement that he was "the Lord" and the employees' statements that § 87(2)(b) had thrown objects at their faces and attempted to go behind the counter to hit them. § 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation A** be **exonerated**.

As decided in *People v. De Bour*, 40 N.Y.2d 210, for officers to search a person who is not under arrest, they must first frisk the individual on the reasonable suspicion that the person has committed a crime and is armed and dangerous (**Board Review 08**). If the frisk reveals an object that is reasonably believed to be a weapon, the officer is permitted to enter the clothing and remove it.

PO Brown acknowledged that when he retrieved § 87(2)(b) ID from his wallet while waiting for EMS, § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] BWC shows PO Brown never asked for permission. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation B** be **substantiated**.

NYPD Administrative Guide Procedure 304-06 prohibits officers from using discourteous or disrespectful remarks regarding another person's disability (**Board Review 09**). § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(b) he directed this term towards § 87(2)(b) while waiting for EMS § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations C and D** be **substantiated**.

New York Penal Law 140.05 states a person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises (**Board Review 10**).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] As captured on BWC, PO Brown informed § 87(2)(b) he was not allowed to enter the Starbucks prior to warning him that if he did, he would be arrested. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation E** be **exonerated**.

§ 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g), § 87(4-b)

[illegible]

Civilian and Officer CCRB Histories

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Martinez has been a member of service for two years and this is the first CCRB complaint to which he has been a subject (**Board Review 15**).
 - PO Brown has been a member of service for eight years and has been a subject in nine other CCRB complaints and 15 other allegations, none of which have been substantiated. Five allegations of Discourtesy: Word have been pleaded against PO Brown (**Board Review 16**):
 - PO Brown allegedly told § 87(2)(b) "Back the fuck up" in complaint 201410986, which was unsubstantiated.
 - PO Brown allegedly told § 87(2)(b) "Give me your fucking license" in complaint 201603088, which was unsubstantiated.
 - PO Brown allegedly told § 87(2)(b) "Fuck you guy" in complaint 201700529, which was closed as complaint withdrawn.
 - PO Brown allegedly told § 87(2)(b) "Turn the fucking car off and put the fucking keys on the roof" in complaint 201806164, which was closed as complainant uncooperative.
 - PO Brown allegedly told § 87(2)(b) that his 125th Street Association badge was "not worth shit" in complaint 201904480, which was unsubstantiated.
 - In the current case, PO Brown told § 87(2)(b) he went "apeshit" in the Starbucks, as captured on BWC. § 87(2)(g)

Civil and Criminal Histories

- As of May 03, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 17**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 16

Investigator:	<u>Inv. Klingenstein</u>	<u>Inv. Aliza Klingenstein</u>	<u>May 12, 2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>05/16/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date